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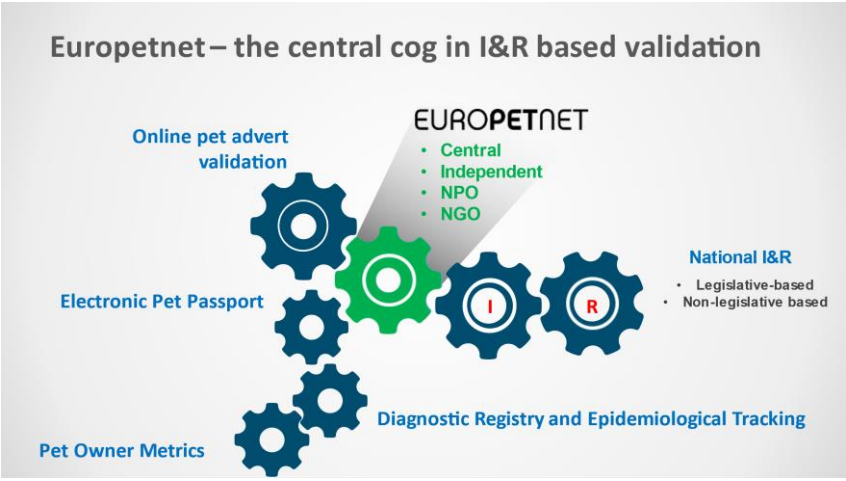
EUROPETNET

Position regarding the regulation proposal on the welfare of dogs and cats and their traceability

EUROPETNET is an NGO founded in 2000 which gathers 47 databases in 26 countries among which 20 Member States of the European Union to work on identification and registration of cats, dogs and ferrets. EUROPETNET's activities are acknowledged in the European Commission's regulation proposal in the part dedicated to the feedbacks from the impact assessment.



Identification and registration must be mandatory for all cats and dogs

EUROPETNET and its members **welcome the regulation proposal on the welfare of dogs and cats and their traceability.**

For years now, **EUROPETNET has been advocating for mandatory identification and registration** of domestic carnivores by certified professionals into interoperable databases recognized by the Member States (or regions pending of the internal organization of each country).

However, **EUROPETNET calls on the European institutions to go further and make identification and registration mandatory for all cats and dogs.** Anything less would be an oversight maintaining the existing divergent framework on identification and registration of pets at European level. Mandatory identification and registration of cats and dogs is the only way to efficiently fight against illegal trade of companion animals.

Moreover, EUROPETNET's members would like to emphasize one concrete point: no one can know, at the birth of a litter, which animals are going to be traded (transfer of responsibility) and which will not. If identification and registration is only mandatory at the point of the transfer, the information stored into the database (e.g. age, keepership…) will be less reliable and more prone to manipulation.

As an example, in France identification and registration of dogs are mandatory. 90% of dogs are registered in the I-CAD database. The provisions regarding identification and registration in the proposed regulation would only concern 50% of the dogs registered in the French database.

➔ **EUROPETNET and its members therefore call for a modification of Article 17 paragraph 1 making identification and registration mandatory for all cats and dogs.**

Data stored in the databases and interoperability within a coordinated and coherent framework

As the European Commission foreseen the adoption of implementing acts regarding the content of the databases (Article 19 paragraph 3(a)), EUROPETNET's members would like to suggest the following categories :

- Species
- Sex
- Date and country of birth
- Breed
- Neutering or not
- If relevant, function of the dog (e.g. guide dog).

The European Commission also foresees the adoption of an implementing act regarding the **interoperability of the databases** between the Member States (Article 19 paragraph 3(b)). The Commission also considers that while the databases must be implemented within 3 years, the requirements relating to their interoperability will only have to be met within 5 years.

However, it would seem more efficient for interoperability to be provided at the beginning of the implementation of a database. Therefore**, EUROPETNET recommends the alignment of the delay offered to establish a database with the one foreseen for ensuring the interoperability of the databases**.

➔ **EUROPETNET calls for a modification of the Article 19 paragraph 2 and the introduction of a 3 years delay for ensuring interoperability between the databases.**

In addition, the adoption of an already existing solution as the basis of the foreseen interoperability based system will **lower the cost for the implementation of the system.** The **EUROPETNET tool**, following in-depth work, **working as an add-on on existing databases, already responds to the requirement to guarantee interoperability between 47 databases in 26 countries**, and could be used **as a reference**.

EUROPETNET's solution at a glance…

EUROPETNET solution is an add-on on existing databases which permits :

- Live API (Application programming Interface)-transfer of non-sensitive data
- The identification of the database where the details are stored in compliance with the GDPR via only one request on the EUROPETNET portal.
- Safe and secure implementation for a new database.

➢ More details can be found on EUROPETNET's website.

EUROPETNET's members would also like to emphasize the fact that if the European institutions decide to design a system with **direct interoperability between the databases** (not via an add-on program as EUROPETNET's solution) **there is a high risk of failure and slow services associated with high maintenance cost because the system will need to rely on each database's abilities.**

- ➔ **Based on more than 20 years of experience on identification and registration of cats and dogs, EUROPETNET truly believes that its solution should be the starting points of the discussion regarding interoperability of databases foreseen through an implementing act by Article 19 paragraph 3(b)).**
- ➔ **This implementing act should foresee an add-on based system and not direct interoperability between all the European databases making the implementation of the new system more efficient, more reliable and less expensive.**

Tackling illicit trafficking in e-commerce: towards effective information verification

EUROPETNET **supports the provisions concerning verification of animal registration** (Article 17 paragraph 6).

While the introduction of an information verification system is to be welcomed, it is nevertheless to be feared that the burden of verification and control will fall exclusively on the buyer. This could lead to a shift in the burden of responsibility.

Alternatively, a solution involving a system integrated in online platforms (such as software) would be an effective and non-burdensome measure that would guarantee to platforms and consumers that the animal about to be advertised is registered at a traceable seller while being in line with the aims and provisions of the Digital Services Act (Regulation (EU) 2022/2065, DSA). In this way, animal registration with the advertiser will be provided, and not simply offered as an option for consumers to verify.

With this in mind, EUROPETENET has developed the "VeriPet" API-solution, which enables the cross-border registration status of marketed animals to be verified. VeriPet uses chip-data from the Europetnet central database that facilitates for live ID-registrations from all members. As a service on the Europetnet platform, VeriPet then performs queries verifying ownership and registration of a pet stored on national level

- ➔ **EUROPETNET and its members are therefore calling for an amendment to article 17, paragraph 6, modifying the verification to be carried out by purchasers and encouraging the introduction of integrated software solutions for verifying the cross-border registration status of traded animals.**

VeriPet at a glance…

VeriPet connects platforms to databases and helps verify if an animal is registered to the person offering it: When creating an advert, the seller must enter the animal's chip number in a field, and provide the phone number listed in the pet registry. If the data matches with the data in the pet registry, VeriPet automatically sends to the phone number listed in the registry under this chip a one-time code that is necessary for the ad to be posted. Only the registered owner will get this code.

Thus, before the ad is live, it is guaranteed that the animal is duly registered onto the advertiser. This validation will ensure traceability of the advertiser and ensure consumer protection in the animal trade.

- In this video you can see how it works.

As a conclusion, EUROPETNET would like to emphasize its support for the adoption of this legislation - hopefully with the modifications highlighted in this document. As the only experienced actor on the subject of identification and registration of pets at European level, EUROPETNET and its members need to be part of the debates on this text between the European institutions. Moreover, with 47 member databases, EUROPETNET is available to participate in the definition of the criteria that will allow the European institutions to select the representative databases in each Member States that should be made interoperable. Finally, EUROPETNET solution for interoperability should be known by all European decision makers as it represents the easiest and cheapest way to achieve interoperability.

Supported by :

uevp Union of European Veterinary Practitioners

FECAVA Federation of European Companion Animal Veterinary Associations

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